

The U.P. State Universities (Reservation in Admission for Scheduled Castes, Scheduled Tribes and Other Backward Classes) Order, 1994

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State of Uttar Pradesh - Act

The U.P. State Universities (Reservation in Admission for Scheduled Castes, Scheduled Tribes and Other Backward Classes) Order, 1994

UTTAR PRADESH

India

The U.P. State Universities (Reservation in Admission for Scheduled Castes, Scheduled Tribes and Other Backward Classes) Order, 1994

Rule

THE-U-P-STATE-UNIVERSITIES-RESERVATION-IN-ADMISSION-FOR-SCHEDULED-CASTES-SCHEDULED-TRIBE S-AND-OTHER-BACKWARD-CLASSES-ORDER-1994 of 1994

Published on 20 July 1994

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The U.P. State Universities (Reservation in Admission for Scheduled Castes, Scheduled Tribes and Other Backward Classes) Order, 1994

Published Vide Notification No. 2638/15-10-94-15(66)-89, dated 20.7.1994, published in the U.P. Gazette, Extraordinary, Part 4, Section (Kha), dated 20.7.1994.

In exercise of the powers under clause (a) of sub-section (5) of Section 28 of the Uttar Pradesh State Universities Act,

1973 (President Act

No.10 of 1973

as amended and re-enacted by U.P. Act No. 29 of 1974), the Governor is pleased to make the following order:

1.

(1)

This order may be called the Uttar Pradesh State Universities (Reservation in Admission for Scheduled Castes, Scheduled Tribes and Other Backward Classes) Order, 1994.

(2)

It shall come into force at once.

2.

[(1)]

[Renumbered by Notification No. 3509/XV-10-94-15(66)-89, dated 30.8.1994.]

Subject to the provisions of sub-section (5) of Section 28 of the Uttar Pradesh State Universities Act, 1973, with effect from the academic session of 1994-95, following percentages of seats in any course of study in a University, Institute, Constituent College, Affiliated college or Associated college shall be reserved for admission for the candidates belonging to the Scheduled Castes, Scheduled Tribes and Other Backward Classes of citizens, namely :

Scheduled Castes

Twenty-one percent

Scheduled Tribes

Two percent

Other Backward Classes of citizens

Twenty-seven percent:

Provided that where any University has provided for Reservation in admissions in favour of any other category of candidates than those referred to above, the candidate selected for admission on the basis of such reservation shall be placed in the appropriate category to which he belongs, For example, if a candidate, selected for admission in any course of study on the basis of reservation in favour of sports person, belongs to the Scheduled Castes, Scheduled Tribes or Other Backward Classes, he will be placed in the respective category to which he belongs by making necessary adjustments and similarly, if he belongs to general category, he will be placed in that category after making necessary adjustment :

Provided further that the seats, if any, reserved under any other law for the time being in force, or under any order of the Government of India, for the students belonging to any other State, shall not be included in the total number of seats for the purpose of computing the percentages under this paragraph.

Explanation. - For the purposes of this Order the term general category, means the category other than those referred to in paragraph 2.

(2)

[The reservation in admission as provided in sub-paragraph (1) shall also apply in any course of study in an University, Institute or such College in respect of y academic session, prior to academic session 1994-95, for which admissions are to made.]

[Inserted by Notification No. 3509/XV-10-94(66)-89, dated 30.8.1994 (w.e.f. 30.8.1994).]

3.

If eligible candidates belonging to the Scheduled Tribes are not available to fill the seat reserved for them under paragraph 2, such seat shall be filled by candidates belonging to the Scheduled Castes.

4.

Subject to paragraph 3, where due to non-availability of eligible candidates any of the seats reserved under paragraph 2 remains unfilled, it shall be filled by a candidate of general category.

Explanation. - For the purposes of paragraphs 3 and 4 it is clarified that a candidate belonging to the Scheduled Castes, Scheduled Tribes or Other Backward Classes of citizens shall not be ineligible if he fails to secure the minimum qualifying marks, if any, in any admission test or under any norm relating to admissions.

5.

If a candidate belonging to any of the categories mentioned in paragraph 2 gets selected for admission on the basis of merit with general category candidates, he shall not be adjusted against the seats reserved for such category under

paragraph 2.

6.

The teachers, belonging to the Scheduled Castes, Scheduled Tribes or Other Backward Classes of citizens shall, so far as possible, be given representation in the Admission Committees to ensure fair admissions.

7.

The Chairperson of the Admission Committee and the Vice-Chancellor in the case of a University and such chairperson and the Head of Institution in any other case, shall be responsible for due observance of this order.

8.

Whoever wilfully acts in a manner intended to contravene or defeat the purposes of this order shall, on conviction, be punishable with imprisonment which may extend to three months or with fine which may extend to one thousand rupees or with both.

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